

STATEMENT OF WORK
FOR
DESIGN BUILD
SERVICES

Replace Campus Steam &
Condensate Lines
Project 564-26-103
January 31, 2026

VETERANS HEALTH CARE SYSTEM OF THE OZARKS
FAYETTEVILLE, ARKANSAS

1. PROJECT PURPOSE AND INTENT

- 1.1. This Statement of Work (SOW) includes the furnishing of all labor, materials, equipment, supervision, administrative support, and any necessary professional engineering services required for the Design Build effort described therein.
- 1.2. The purpose of this project is to replace all underground steam and condensate distribution lines to and from Building 10(B-10)(Boiler Plant), Building 1(B-1), Building 3(B-3), Building 4(B-4), and Building 21(B-21) on the Fayetteville Campus. Construction will be on an existing, operational steam distribution system that will need to remain functional during construction. This project will also include the demolition of all abandoned steam and condensate distribution lines and associated fittings and/or structures as well as all unneeded associated equipment. Furthermore, this project will include the modification or replacement of underground structures, as necessary.
- 1.3. The Design Build (DB) contractor shall furnish:
 - 1.3.1. Design: All Design-Build Architect and Engineering (DB AE) services, materials, supplies, equipment, investigations and project supervision, and construction period services associated with this contract. Design shall meet Veteran's Affairs (VA) Design Guides and Design Criteria and VA Master Specifications at the technical information library TIL (www.cfm.va.gov/TIL), including providing a compliant utility system that meets VA physical security design guide requirements. Design shall follow all current applicable codes, including, but not limited to, International Building Codes (IBC), National Fire Protection Association (NFPA), and Occupational Safety and Health Administration (OSHA).
 - 1.3.2. Construction: All labor, materials, supervision, and administration for the complete construction of the project.
- 1.4. The project is located at the Fayetteville VA Campus, located at 1100 College Ave, Fayetteville, AR 72703.
- 1.5. A preliminary/pre-proposal site visit is required. Design-Build contractor to coordinate site visit(s) with the Contracting Officer CO. Contractor(s) must take appropriate safety precautions when conducting field investigations and notify the COR of any/all hazardous material, substances and/or circumstance discoveries. VA will provide on-file site drawings for applicable disciplines (i.e. Site, Civil, Architectural, Structural, Seismic, Plumbing, Fire Protection, Mechanical, Electrical, etc.). Not all drawings are in electronic format or up to date, but available as-builts will be provided. The Design-Build contractor shall be responsible for field verification of existing conditions of all utilities, structures, and barriers.

2. **1.6 Post award - Design-Build contractor to coordinate site visit(s) with the Contracting Officer CO. Contractor(s) must take appropriate safety precautions when conducting field investigations and notify the COR of any/all hazardous material, substances and/or circumstance discoveries. VA will provide on-file site drawings for applicable disciplines (i.e. Site, Civil, Architectural, Structural, Seismic, Plumbing, Fire Protection, Mechanical, Electrical, etc.). Not all drawings are in electronic format or up to date, but available as-builts will be provided. The Design-Build contractor shall be responsible for field verification of existing conditions of all utilities, structures, and barriers. PROJECT OBJECTIVES**

- 2.1. The Design Build Contractor shall provide a fully functional and complete steam

distribution system for the Veteran's Health Care System of the Ozarks (VHSO) Fayetteville Campus.

- 2.2. The Design Build Contractor shall provide a phased plan that replaces all steam and condensate distribution to and from B-10, B-1, B-3, B-4, and B-21 while maintaining functionality of all existing utility systems.
- 2.3. The Design Build Contractor shall provide phasing of roadway work to always allow a two-directional route for traffic through the campus.

- 2.4. The Design Build Contractor shall provide all utility connections if required (water, sewer, electrical, data), and pay for all city, county, and private utility providers' fees associated with the connection of utilities. The Design Build Contractor shall immediately begin working with utility providers to avoid delays to the project. No additional compensation shall be awarded for following the standard processes required by utility providers to make changes to their utilities.
- 2.5. The Design Build Contractor shall relocate all existing utilities that will remain as needed. The Design Build Contractor shall remove and reconnect all existing utilities. The Design Build Contractor shall remove or cut/cap all abandoned utilities. Changes will be documented in as-builts.
- 2.6. The Design Build Contractor shall provide third party commissioning of the new steam and condensate distribution system and pay all the required commissioning fees as needed or required.
- 2.7. The Design Build Contractor shall consider the site in its entirety and develop a steam and condensate distribution system that fits within the site constraints and within the approved budget.

3. PROJECT SCOPE

- 3.1. Site Development: Includes new sidewalk access and pathways to maintain VA required access to adjacent buildings and parking areas per VA design guides. Cut and clean site curbs, add temporary ramps, asphalt, sidewalks, landscaping, and access around site to maintain appropriate access.
- 3.2. Site Utilities:
 - 3.2.1. Including but not limited to, relocation and/or temporary connections for steam/condensate lines, sewer lines, manholes, electrical, communication, storm water, and water utility.
 - 3.2.2. All utility shutdowns that affect the campus shall be coordinated with the COR to be performed outside of regular business hours or on the weekend at no additional cost to the government. Design Build Contractor is also responsible for coordinating other utility shutdowns with providers and the VA as required. To include paying all required fees and meeting utility provider and VA requirements.
- 3.3. All construction work shall be during normal hours, 7:00 AM to 5:00 PM unless hours outside of normal hours are requested and approved. After Hours work must not exceed 20% of total man hours Any work that creates excessive noise or impacts patient/staff operations must be accomplished on weekends or outside of VHSO Fayetteville Campus normal operations hours at no additional cost to the government. The definition of excessive noise and vibration etc will be at the discretion of VA on case by case basis. In general, anything in excess of 70 dBA is considered excessive noise.
- 3.4. Contractor shall minimize parking and traffic impacts to the campus and shall be responsible for providing and installing temporary traffic warning signs and directional signs and coordinate temporary traffic changes and posting of signs with the COR and the VA police.
- 3.5. All utilities and telecom outages shall be conducted after normal operation hours. Submit outage plan and Method of Procedure (MOP) notice thirty (30) calendar days in advance of the anticipated outage date, for all modifications to utility systems affected including steam, electrical, plumbing, lighting, HVAC, etc. The VA has the discretion to reject

- requests or extend time beyond 30 days.
- 3.6. Any state permitting and monitoring required for this project shall be developed and managed by the Design Build Contractor, and the Contractor shall be responsible for coordinating with local and state authorities and paying all fees.
 - 3.7. Any National Environmental Policy Act (NEPA) and environmental documentation required for this project shall be developed and managed by the Design Build Contractor, and the Contractor shall be responsible for coordinating with local and state authorities and paying all fees.
 - 3.8. The contractor shall be responsible for developing and maintaining a Storm Water Pollution Prevention Plan (SWPPP), registering the project with the Arkansas Division of Environmental Quality, and paying all fees associated with the registration, implementation, and maintenance of the SWPPP.
 - 3.9. The contractor shall hire and pay for a “qualified SWPPP Developer” (QSD), who will be responsible for developing a complete Storm Water Pollution Prevention Plan for this project.
 - 3.10. The contractor shall be responsible for hauling away and disposing of all excess soil in accordance with governing environmental ordinances.
 - 3.11. See additional Design Build Architect-Engineer (DB AE) Design requirements below in Design Requirements. The scope of DB AE services shall include the following, but not limited to:
 - 3.11.1. Development of a complete stamped and signed design package including all appropriate trades which, at a minimum, should include architectural, civil, structural, mechanical, electrical, and plumbing for the project.
 - 3.11.2. **DB AE Design Development:**

After Notice to Proceed, the Design Build Contractor shall schedule and discuss overall vision of steam and condensate replacement and importance of various design elements with VA key personnel. For the 35% Design Development drawings, the Design Build Contractor shall provide a 35% design submittal on the steam and condensate distribution replacement design and how it will be incorporated into the existing/remaining site conditions and environment. This includes phasing, building/manhole tie-ins, and temporary utility needs. As well as the traffic, pedestrian and vehicle, routing to existing/remain roadway(s). The design parameters shall be discussed during the early kick-off phase of the design project.

4. DESIGN REQUIREMENT

- 4.1. VA design instructions, guide specifications and reference material are available at the VA Office of Facilities Management website <http://www.cfm.va.gov/TIL/>. This design shall meet all VA requirements.
- 4.2. Utilize Design Build Architect-Engineer (DB AE) Submission Instructions, Volume DB as detailed at VA website <http://www.cfm.va.gov/cfm/contract/ae/aesubmin.doc> unless otherwise changed by this SOW.
- 4.3. Site Design Data. The DB AE shall perform field reconnaissance, surveys, site investigations, soil tests, geotechnical reports, and all other activities required to obtain engineering information and design data for the accomplishment of the contract documents per this Statement of Work.
- 4.4. VA Criteria Deviation Log. VA criteria must be strictly followed unless approved

otherwise by the Contracting Officer. Any approved deviations must be maintained in a Deviation Log.

5. DESIGN DELIVERABLES

- 5.1. Project Schedule. A project schedule indicating design time, phasing, durations, construction activities, critical site visit milestones, and utility shutdowns that will have large impact to buildings or campus utilities is due 30 days after the NTP.
- 5.2. VA Criteria Deviation Log. VA criteria must be strictly followed unless approved otherwise by the Contracting Officer. Any approved deviations must be maintained in a Deviation Log.
- 5.3. The use of a web based submittal system, IE Submittal Exchange, Procor, etc. identifying every submittal required by the drawing specifications. The DB AE shall provide a draft submittal register at the 100% drawing submittal.
- 5.4. Drawings and Specifications. The items specified below may not include all required deliverables. Provide other required deliverables as required in the VA's Technical Information Library and VA design guides.

5.5. Submittals:

- 5.5.1. Hard Copy: Drawings shall be on 24-lb bond paper, bound unless otherwise noted. Drawing size: full size 36x48, half size 24x36.
- 5.5.2. Electronic Files (AutoCAD, PDF, Word, etc.). Must be provided in editable format. Electronic filenames shall include both the drawing/spec number and the drawing/spec name in the order.
- 5.5.3. 35% Schematic Submission: Electronic: All documents (including all specifications and table of contents indicating intended spec sections), investigation reports, design calculations, construction schedule, and cost estimate) in electronic format, drawings and renderings (in AutoCAD and PDF), construction schedule, specs in both MS WORD and PDF, VA Criteria Deviation Log, etc. Specifications will be reviewed at each milestone of the design review and will be subject to change.
- 5.5.4. 65% Design Submission: Electronic: All documents (including specifications (table of contents indicating intended spec sections), investigation reports, design calculations, construction schedule, and cost estimate) in electronic format, drawings and renderings (in AutoCAD and PDF), construction schedule, specs in both MS WORD and PDF, VA Criteria Deviation Log, etc.
- 5.5.5. 95% Design/Construction Submission: Electronic: All documents (including specifications (table of contents indicating intended spec sections), investigation reports, design calculations, construction schedule, and cost estimate) in electronic format, drawings and renderings (in AutoCAD and PDF), construction schedule, specs in both MS WORD and PDF, VA Criteria Deviation Log, etc.
- 5.5.6. 100% Final Documents: Hard copy: 1 full-size sets of drawings, 1 half size set of drawings. Electronic: All documents in electronic format: separate files for each drawing in AutoCAD and PDF; one fully bookmarked PDF file containing all the drawings and hyperlinks on the title sheet's list of drawings; one Word file containing all the specification sections; a Word file for each specification section; one fully bookmarked PDF file containing all the specification sections; a PDF file

for each specification section, submittal log; VA Criteria Deviation Log, construction schedule; design calculations and any miscellaneous design analysis documents such as submittal log and physical security compliance report and tests. Contractor to separate files into folders indicating key subjects. Folders and files to be titled per VA instructions, as in 5.5.2 and to include other information for them to be understood.

5.5.7. Record Drawings: Electronic copy: two CDs each containing: All documents in electronic format and each drawing to be a separate file, both in DWG and PDF (the DWG format must be unprotected to permit future editing); and one fully bookmarked PDF file containing all the drawings. Contractor to separate files into folders indicating key subjects. Folders and files to be titled per VA instructions, as in 5.5.2 and to include other information for them to be understood.

6. CONSTRUCTION SUPPORT SERVICES

6.1. The DB AE shall perform field reconnaissance, surveys, and site investigations required to obtain engineering information and design data for the accomplishment of the contract documents. Specific site visit milestones will be identified in the construction schedule – textual trip reports are required within two days following the visit. In addition to scheduled visits (weekly production meetings and specific construction schedule milestones) unscheduled visits, Submittal, and Shop Drawing Reviews. The DB AE shall perform submittal reviews and provide recommendations for the range of acceptance to rejection. Unless otherwise agreed, the VA will determine the outcome of all submittals.

6.1.1. Submittals are not just “product submittals” They are but not limited to the following: product submittals, shop drawings, RFIs (Request for Information), RFPs (Request for Proposal), cost estimates, schedules, and all associated updates, etc.

6.2. Construction Meeting participation. Weekly production/construction meetings will be held at the job site. DB AE participation by phone is acceptable unless unresolved construction issues require physical presence and review by DB AE at VA’s discretion.

6.3. Project record drawings - The Design Build Contractor will maintain a set of construction documents (field as-built drawings) to record actual construction changes during the construction process as required. The project record drawings will be always available for review by the Contracting Officer’s Representative (COR).

6.4. The DB AE shall perform submittal and shop drawing reviews. The DB AE shall perform submittal reviews and provide recommendations for the range of acceptance to rejection. VA has final review on all submittals to ensure they meet VA specs. Responses shall be due within seven (7) calendar days of receipt. VA COR will have final sign off/approval, before they are considered complete. VA responses to submittals do not absolve the Design Build Contractor from the requirement to meet the contract requirements.

6.5. Review and prepare response to construction contractor RFIs. DB AE shall review and respond to all design related RFI’s within four (4) calendar days. VA COR will have final sign off/approval before they are considered complete.

6.6. VA shall be included in all RFI and Submittals review and responses. The VA reserves the right for final approval/disapproval.

6.7. DB AE shall perform acceptance testing on behalf of the VA for all building and utility systems.

As requested by the Contracting Officer or COR, the DB AE and others shall be required to make periodic site visits to monitor, inspect and review all aspects of the project to ensure compliance with the construction documents and other regulatory requirements. During site visits immediate on-site comments shall be provided and field visits reports shall be generated. Forward formal inspection reports to the COR no later than seven (7) calendar days after the site visit.

- 6.8. The A/E to perform/witness commissioning of the steam and condensate distribution systems.

7. COMMISSIONING SERVICES

- 7.1. The DB A/E shall provide Commissioning and 3rd party Commissioning Agent services and deliverables in accordance with the reference document, OCFM Whole Building Commissioning Process Manual located on the [VA TIL](#) PG18-10. See “Commissioning Agent Tasks” in each section of the reference document. The Commissioning Agent shall be involved in all phases of the project, including both design and construction. It is anticipated that the Commissioning Agent will participate in the following: design reviews, owner’s requirements updates, design phase commissioning planning(facilitate), commissioning specification reviews (facilitate), construction project meetings, construction observation visits, equipment startup and testing, and project commissioning (facilitate in coordination with General Contractor). The commissioning process shall be adapted to the size and complexity of the project. Deliverables shall be as described in the reference document. Additionally, the A/E shall develop the commissioning plan, pre-functional checklists, systems functional performance test checklists, integrated system test checklists, and edited master specification templates to serve as a starting point for the commissioning process on all projects based on the following Systems to be Commissioned:

- 7.1.1. Steam Energy Distribution VA Specifications
- 7.1.2. Electrical VA Specifications (dependent on design)
- 7.1.3. Plumbing VA Specifications (dependent on design)
- 7.1.4. Fire suppression and Alarm (dependent on design)

8. QUALITY ASSURANCE/QUALITY CONTROL (QA/QC)

- 8.1. The Design Build Contractor shall develop, execute, and demonstrate that the project plans and specifications have gone through a rigorous review and coordination effort. The requirements are as follows:
 - 8.1.1. Provide an outline of the actions that your firm will take during the design process.
 - 8.1.2. Fourteen (14) calendar days after Receipt of the Notice to Proceed: Submit a detailed QA/QC Plan describing each step that will be taken during the development of the various phases of design. Each step should have an appropriate space where a senior member of the firm will initial and date when the action has been completed.
 - 8.1.3. 100% Submittal: Submit the completed QA/QC Plan along with the latest marked-up documents (plans, specifications, etc.) necessary to ensure that a thorough review and coordination have been completed.

9. CRITICAL PATH METHOD PHASING MEETINGS

The Design Build Contractor shall meet with VAMC’s COR to discuss and outline

phasing requirements for the project. These phasing requirements shall describe the general sequence of the project work, estimated project duration, and what Government constraints will exist that will influence the Contractor's approach to the construction project. The Contractor shall be responsible for recording the phasing requirements. Utility interruptions, parking impacts, pedestrian traffic, and vehicle traffic should all be considered; the station cannot suffer construction impacts that unduly inhibit patient care, pedestrian flow, or the site traffic flow. The VAMC will decide what impacts to the campus and the people will be acceptable and what “unduly” impact the campus, patients, employees, etc.

The DB Contractor shall submit a phasing narrative and phasing plans (on reduced size plans) within two weeks after each phasing meeting to the VAMC Project Manager. VA will review these submission(s) and return comments to the contractor within three weeks of receipt. The contractor will then use this information in preparing their schematic, design development, and construction document submissions.

10. SCHEDULE FOR DESIGN BUILD

10.1. Design

Deliverable / Event		When (NTP + Calendar Days)	Duration (Calendar Days) *Changeable*
Notice to Proceed (NTP) & Kick-Off Includes - SOW validation walkthrough and discussion	NTP +	1	1
Survey & Investigative Services and Site Visits Timeline Commences			
Conduct Site Visit for Survey, Review GPRS & Thermal Scans Study/Surveys (Reference Section 15.0 Attachments of this SOW)	NTP +	22	21
Deliver Design Quality Control Plan electronically	NTP +	36	14
Deliver Schematic Design Documents (35% SDs)	NTP +	64	28
<i>VAMC Review of 35% SDs</i>		85	21
35% SDs Review Meeting at VA; Authorization to Proceed to 65%	NTP +	86	1
Deliver Design Development Documents (65% DDs) electronically to VAMC COR	NTP +	131	45
<i>VAMC Review of 65% DDs</i>		152	21
65% DDs Review Meeting at VA; Authorization to Proceed to 95% (*Concurrent Construction start with VA Authorization)	NTP +	153	1
Deliver Construction Documents (95% CDs) electronically to COR	NTP +	213	60
<i>VAMC Review of 95% CDs</i>		241	28
95% CDs Review Meeting at VA; Authorization to Proceed to 100%	NTP +	242	1
Deliver Construction Documents (100% CDs) electronically and hard copy to VAMC COR	NTP +	256	14
<i>VAMC Review of 100% Construction Documents</i>	NTP +	277	21
100% CDs Review Meeting VA; Authorization for	NTP	278	1

<u>Stamped/Sealed Set</u>	+		
<u>Deliver</u> Construction Documents (100% CDs) electronically and hard copy to VAMC COR [STAMPED/SEALED]	NTP +	285	7

10.2. Construction

ACTION	CALENDAR DAYS	AFTER ...
*Start Mobilization Process: Demolition of Steam Distribution System, Temporary Utilities, and Preparation of Construction Site after 65% submittal.	*45	<i>*65% Design Submittal & Meeting (Note Schedule Overlap)</i>
Complete Initial Phase of Steam Distribution Replacement	*30	<i>*Start Mobilization Process and Preparation of Construction Site after 65% submittal turn-in (Note Schedule Overlap)</i>
Mobilize Subsequent Phase: Site Prep, Traffic Routing, Demo, Temp Utilities, etc.	*30	Complete Initial Replacement Phase Replacement, Testing, & Cx of New Lines (Note Schedule Overlap)
Remaining construction, MEP, Installation, Interconnection, Testing, Contractor Cx	180	Subsequent Phase Work Activities
Final Punchlist Activities, 3 rd Party Cx	21	Remaining construction, Contractor Cx
End Date of Construction Contract	21	Final Punchlist Activities
TOTAL CONSECUTIVE DAYS	480	End Date of Construction Contract

*Please NOTE: All design review meetings to be held at the Fayetteville AR VAMC and/or Teams meetings at the discretion of VHSD Fayetteville.

11. RISK CONTROL

- 11.1. The VSHO Fayetteville is an active hospital and therefore will require consideration to those areas with patients and staff.
- 11.2. The Contractor shall be responsible for the administration and management of all aspects of this SOW. This includes responsibility for all Contractor employees, subcontracts, agents, and anyone acting for or on behalf of the Contractor.
- 11.3. The Government is authorized to restrict the employment under the contract of any Contractor employee or prospective Contractor employee, who is identified as a potential threat to the health, safety, security, general well-being, or operational mission of the installation and its population.
- 11.4. The parties agree that the Contractor's personnel working as a result of this contract shall not be considered VA employees for any purpose and shall be considered employees of the Contractor.
- 11.5. Contractor Parking: The General Contractor and its employees shall park in designated areas only. Contractor to coordinate with Contracting Officers Representative (COR).
- 11.6. Besides space allocated for construction area, no additional space can be guaranteed for contractor use. For example, laydown area, soils storage, equipment

storage, temporary office. Contractor must submit a written request for additional storage or staging to the COR for consideration a minimum of seven (7) business days prior to the storage or staging. Contractor must have prior COR written approval of on-site Contractor storage and staging. Contractor must relocate or remove on-site storage and staging, including but not limited to, Contractor's office trailer(s), dumpster(s), storage container(s) and construction materials a maximum of seven (7) business days after written notification by the COR without additional expense to the Government.

11.7. All visits to the site are to be coordinated with the COR.

12. SAFETY

12.1. As a minimum, Hot Work and Confined Space Entry Permits will be required for this project. Permits are valid for twenty-four (24) hours. Permits are to be submitted at least fourteen (14) calendar days prior to work taking place.

13. SECURITY

13.1. Contractors do not need and shall not be allowed access to any VA personnel or VA patients Personal Health Information (PHI) or Personally Identifiable Information (PII) in the performance of the requirements of this SOW. Additionally, the contractor does not need and shall not be allowed access to VA sensitive information in the performance of the requirements of this SOW.

13.2. The contractor shall not connect contractor-owned IT devices (laptop computer or remote connection from a contractor system) to a VA internal trusted (i.e., non-public) network. Computer certification and accreditation requirements do not apply, and a security accreditation package is not required.

13.3. Contractors, contractor personnel, subcontractors, and subcontractor personnel shall be subject to the same Federal laws, regulations, standards, and VA Directives and Handbooks as VA and VA personnel regarding information and information system security.

14. RECORD MANAGEMENT OBLIGATIONS

14.1. *Applicability*

This clause applies to all Contractors whose employees create, work with, or otherwise handle Federal records, as defined in Section B, regardless of the medium in which the record exists

14.2. *Definitions*

"Federal record" as defined in 44 U.S.C. § 3301, includes all recorded information, regardless of form or characteristics, made or received by a Federal agency under Federal law or in connection with the transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of the United States Government or because of the informational value of data in them.

The term Federal record:

1. includes Veterans Health Care System of the Ozarks records.
2. does not include personal materials.

3. applies to records created, received, or maintained by Contractors pursuant to their VHSO contract.
4. may include deliverables and documentation associated with deliverables.

14.3. ***Requirements***

- 14.3.1. Contractor shall comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chs. 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and those policies associated with the safeguarding of records covered by the Privacy Act of 1974 (5 U.S.C. 552a). These policies include the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion.
- 14.3.2. In accordance with 36 CFR 1222.32, all data created for Government use and delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended and must be managed and scheduled for disposition only as permitted by statute or regulation.
- 14.3.3. In accordance with 36 CFR 1222.32, Contractor shall maintain all records created for Government use or created in the course of performing the contract and/or delivered to, or under the legal control of the Government and must be managed in accordance with Federal law. Electronic records and associated metadata must be accompanied by sufficient technical documentation to permit understanding and use of the records and data.
- 14.3.4. VHSO and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Records may not be removed from the legal custody of VHSO or destroyed except for in accordance with the provisions of the agency records schedules and with the written concurrence of the Head of the Contracting Activity. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal, defacing, alteration, or destruction of records, Contractor must report to VHSO. The agency must report promptly to NARA in accordance with 36 CFR 1230.
- 14.3.5. The Contractor shall immediately notify the appropriate Contracting Officer upon discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the [contract vehicle]. The Contractor shall ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment is properly protected. The Contractor shall not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express written permission of the Head of the Contracting Activity. When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to VHSO control or the Contractor must hold it until otherwise directed. Items returned to the Government

shall be hand carried, mailed, emailed, or securely electronically transmitted to the Contracting Officer or address prescribed in the [contract vehicle]. Destruction of records is EXPRESSLY PROHIBITED unless in accordance with Paragraph (4).

- 14.3.6. The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under, or relating to, contracts. The Contractor (and any sub-contractor) is required to abide by Government and VHSD guidance for protecting sensitive, proprietary information, classified, and controlled unclassified information.
- 14.3.7. The Contractor shall only use Government IT equipment for purposes specifically tied to or authorized by the contract and in accordance with VHSD policy.
- 14.3.8. The Contractor shall not create or maintain any records containing any non-public VHSD information that are not specifically tied to or authorized by the contract.
- 14.3.9. The Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act.
- 14.3.10. The VHSD owns the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the U.S. Government for which VHSD shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. Any Contractor rights in the data or deliverables must be identified as required by FAR 52.227-11 through FAR 52.227-20.
- 14.3.11. Training. All Contractor employees assigned to this contract who create, work with, or otherwise handle records are required to take VHSD-provided records management training. The Contractor is responsible for confirming training has been completed according to agency policies, including initial training and any annual or refresher training.

14.4. *Flowdown of Requirements to Subcontractors*

- 14.4.1. The Contractor shall incorporate the substance of this clause, its terms and requirements including this paragraph, in all subcontracts under this [contract vehicle], and require written subcontractor acknowledgment of same.
- 14.4.2. Violation by a subcontractor of any provision set forth in this clause will be attributed to the Contractor.

15. ATTACHMENTS

- 15.1. Attachment 1 – PG 18-15 Volume DB 2024-05
- 15.2. Attachment 2 – Fayetteville VA Campus Utility Drawings
- 15.3. Attachment 3 – Fayetteville– Project site map
- 15.4. Attachment 4 – Fayetteville GPR data
- 15.5. Attachment 5 – Fayetteville Thermal Imaging Inspection